



File No.: EXP202312088

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 17/07/2023, A.A.A., with ID ***NIF.1 (hereinafter the complainant), submitted a complaint to the Spanish Agency for Data Protection against NATURGY IBERIA, S.A. with NIF A08431090 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that on 12/07/2023, they received an email from the complained party NATURGY, notifying them of the activation of gas and electricity supply contracts. They indicate that they did not request a change of company, and after requesting access to the recordings, they were sent a recording that they claim was made by a third party impersonating their identity.

They provide the referenced email and a copy of the recording.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on 13/09/2023, the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 14/09/2023 as evidenced by the acknowledgment of receipt in the file.

THIRD: On 17/10/2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

POINT 1. In the context of the forwarding of the complaint, the complained party stated the following:

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- NATURGY's systems show that the gas and electricity supply contracts, as well as maintenance services, are registered in the name of the complainant.

- This contracting was carried out on 06/07/2023 by NATURGY's collaborating company (EC), GRUPO MYJ SERVICIOS GENERALES 2020 SL (hereinafter MYJ), which is a company that, as a data processor, provides NATURGY with advisory and commercial and technical support services for customer acquisition.

- According to the information in NATURGY's systems, the contracting was carried out through a tool in which, during the commercial call, if the customer expresses their intention to contract a product, an SMS is sent, containing a link to a website where the information on the offered products and contractual conditions is displayed, and where the customer must click a "button" to give their consent for the contracting and the SEPA debit, thus recording the date and time when the customer expresses their intention to contract, as well as the IP address from which it is done.

- The entire contracting process, from the sending of the SMS, its content, access to the linked website, selected preferences, date and time, and IP addresses from which consent for contracting is

given, is certified by a Trusted Third Party, the entity Aviva Voice Systems & Services, S.L. (hereinafter Aviva).

- On 17/07/2023, the complainant, in response to the email in which the recording of the call was sent, wrote an email to NATURGY indicating that the woman appearing in the recording is not his wife.

- They state that all existing evidence leads to the conclusion that the contracting of the services subject to the complaint was carried out correctly and lawfully. They indicate that the documentary evidence alone seems to confirm this, and additionally, in the recordings themselves, there are no elements that could raise suspicion. However, as NATURGY lacks means to verify whether the voice heard in the recordings belongs to the complainant's wife, NATURGY has forwarded the complainant's accusation to the EC that made those calls, MYJ, which firmly denies that its agent has engaged in the practices reported by the complainant and asserts that the contracting was done correctly and lawfully.

POINT 2. Given that in remote contracts an impersonator can provide a phone number from a line in their possession that does not have to correspond to the person whose data is provided, sending an SMS to that phone number does not allow for the verification of the contractor's identity. Therefore, the complained party has been asked to provide the procedure followed for verifying the identity of contractors to prevent possible identity impersonations. They have been required to provide detailed information on the procedure established for handling requests in this case (telephone), including the controls for verifying the identity of the applicant and the data and documents required from them, as well as the details of the verifications carried out on them.

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Specifically, the responding party has stated the following details regarding the established procedure:

- The contracting related to this case was carried out through the telephone sales channel. The contracting process for this channel begins with a commercial phone call, which was recorded by MYJ in this case, and during which, if the customer expresses their intention to contract a product, an SMS is sent to them, containing a link to a website where the information about the offered products and contractual conditions is displayed, and where they must click on a "button" to give their consent for the contracting and the SEPA debit, thus registering the date and time when the customer expresses their willingness to contract, as well as the IP address from which it is done.

- Therefore, in cases of telephone contracting such as the present file, the customer's consent, beyond being expressed by the customer in the telephone conversation with the sales agent, must be given by accessing the confirmation website of the willingness to contract, which is accessed through the link provided to the customer via an SMS sent to their phone.

- Thus, in order to send that SMS, the sales agent must enter the customer's phone number into the system to enable them to access the information and confirm their willingness to contract. Similarly, they must enter the rest of the customer's data necessary to complete the contract into the system, so that when the customer accesses the SMS, they can verify it and, if necessary, correct any errors that may exist before proceeding with the acceptance of the contract. Among such data is also the customer's email address to which two emails will be sent: one confirming the start of the contract activation process, and another welcome email once the contract has been activated, as well as a quality survey, as will be explained further on.

- The entire contracting process, from the sending of the SMS, its content, access to the linked website, selected preferences, date and time, and IP addresses from which the contracting is consented, is certified by a Trusted Third Party. The certificate from that entity corresponding to the present contracting was provided by NATURGY to the AEPD along with the response to the first information request from the AEPD. Additionally, the recording of the contracting call was also provided.

- They indicate that the mechanism described above by which the customer's consent is obtained

during the contracting process, as well as other measures indicated below, are designed to prevent, hinder, and discourage irregular practices by the EECC, such as identity theft:

- In NATURGY's contracting system, an automated control has been implemented that blocks the contracting process when the phone number entered to send the SMS has already been used previously on several occasions to formalize other contracts.

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They highlight that they have verified that the phone number to which the confirmation SMS of the contract was sent, and which is reflected in the Aviva certificate, has not been used to confirm any other contract with NATURGY.

- There is another automated control that blocks the contracting process, implemented by NATURGY to prevent possible fraudulent contracts through identity theft.

They indicate that when a contract is activated, NATURGY sends the customer an email confirming the activation of the contract and welcoming them. An example of such an email is the one that the claimant himself acknowledges having received in his email account and which he has attached to his submission to the AEPD. It seems reasonable to think that if an EC intends to enter into a contract by impersonating the customer's identity, they will avoid entering the customer's email address into the system, so that the customer does not receive the welcome email and calls NATURGY to report what happened, as this would lead to the actions of NATURGY against the aforementioned EC. On the contrary, the EC intending to commit fraud will enter into the system an email account that does not belong to the customer, an email account managed by that EC or by the agent committing the fraud. To prevent ECs from engaging in this practice, another automated control similar to the one previously described regarding the phone number has been implemented in NATURGY's contracting system, so that the system blocks the contracting process when the customer's email address entered into the system by the ECs matches another used in several contracts in the last 12 months.

They state that, furthermore, in the case of the present file, the mere fact that MYJ entered the customer's real email address into the system, causing the customer to receive their welcome email, demonstrates that it is highly unlikely that there was any identity theft.

- On the other hand, as soon as the customer accepts the contract through the confirmation web page, they receive an email with a link to the contract they have accepted, also informing them that the activation process begins, which lasts about 10 days.

They indicate that in the event that an EC had engaged in any fraudulent practice during the contracting, such as identity theft, the customer would be fully aware of what happened upon receiving this email, being able to contact NATURGY to report what occurred, withdraw from the contracts even before their activation, or take any other measures they deem appropriate, and NATURGY could in turn initiate the appropriate actions against the EC.

In relation to the present file, this email was sent to the claimant on July 6, 2023, at 18:58, to the email account that the claimant acknowledges as his own, and it was opened by the recipient. They attach to their response as Annex VIII a screenshot of the system showing the sending, and a copy of the text is attached.

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contained in said email as Annex IX. They state that the capture indicates 10:58 am because it reflects the CST time zone, which in summer daylight saving time is 18:58 pm.

- They indicate that additionally, as part of the hiring process, all EECC are required to conduct and record a verification call for all hires. This is a call in which, after the client has confirmed their willingness to hire through the aforementioned SMS mechanism, the EC makes an additional call to

the client to confirm all the hiring data and, fundamentally, their willingness to contract with NATURGY. They state that the registration of the hiring in the system cannot be completed until the EC incorporates both the initial sales call and the verification call into the system. That is, without the recording of the verification call, the system does not accept the sale and it will never be processed. The collaborating company must upload all required recordings in addition to the Aviva certificate, or the sale will never be accepted/recorded.

Furthermore, they indicate that the verification call cannot be made by the same agent who made the sale, but rather, this call must be made from another back office team. Therefore, not all necessary elements for completing a hiring can be performed by a single sales agent; the intervention of several different teams is always required. This measure helps prevent a single agent from engaging in fraudulent conduct, such as identity theft.

They attach as Annex X one of the emails sent to the NATURGY sales team, dated June 3, 2022, in which they are informed in section 2 of various obligations that EECC conducting remote sales must comply with. It is verified that section 2.k) states, "it is prohibited for the seller to validate their own sales." In section 2.i it is cited, "It is mandatory to have the recording of the sales call from the beginning and the recitation of the legal text + verification call." It is confirmed that the claiming party provided copies of two call recordings: the hiring call and the verification call within the framework of AT/04554/2023.

It is verified that in the electricity and gas contract provided by the entity (within the framework of the AT), the personal data of the client mentioned in the recordings are included (name of the claimant, their ID, address, email, contact phone number, and CUPS for gas and electricity). The contact phone number has not been recognized by the claimant as theirs, stating they do not know to whom it belongs.

LEGAL GROUNDS

I

Competence

According to the functions conferred to each control authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 6.1 of the GDPR, Lawfulness of processing, states that:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

III

Case Analysis

In this case, the claiming party expresses their surprise at receiving an email from the responding party informing them of the activation of contracts for the supply of gas and electricity without having requested the change of suppliers and that, upon requesting access to the recordings, they indicate identity theft in the mentioned contracts as they do not recognize their voice in them.

However, it should be noted that despite the efforts made by the inspection services of this management center to clarify the terms of the complaint raised by the claiming party, they have not yielded results since there have not been sufficient indications to determine that there was an occurrence of identity theft.

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identity theft in contracting, or that it was carried out fraudulently with the intervention of agents of the entity providing services to the claiming party.

It is noteworthy that the contracting was communicated promptly via email directed to the email address of the claiming party, who was able to act accordingly.

In this regard, it should be noted that in the administrative sanctioning field, the principles inspiring criminal law are applicable, with some nuances, but without exceptions, and the principle of presumption of innocence has full validity, which must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions. This is because the exercise of the *ius puniendi*, in its various manifestations, is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions.

In this sense, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails “that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal ruling.”

As the Supreme Court has specified in STS of October 26, 1998, the validity of the principle of presumption of innocence “does not oppose the fact that judicial conviction in a process can be formed on the basis of circumstantial evidence, but for this evidence to undermine said presumption, it must satisfy the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and it must explicitly state the reasoning by which, based on the proven indications, it has reached the conclusion that the accused committed the infringing conduct, since otherwise, neither the subsumption would be based on law nor would there be a way to determine if the deductive process is arbitrary, irrational, or absurd, that is, if the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating.”

In light of the above, it is concluded that the principle of presumption of innocence prevents imputing an administrative infraction when no incriminating evidence has been obtained and verified that substantiates the facts motivating the accusation or the intervention of the alleged infringer. Translating the preceding reasoning to the case at hand, given that it has not been reasonably determined the existence of identity theft and to identify its responsible party, conduct that could constitute an infringement of the GDPR, it is appropriate to agree to archive the investigative proceedings carried out.

IV

Conclusion

Therefore, based on what has been stated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

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All this without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing, in accordance with what has been stated,

By the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to NATURGY IBERIA, S.A. with NIF A08431090, and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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